

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: August 31, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

1	Johnson v. MP Trinity LLC 2026-01568110 Demurrer to Complaint	Defendant MP Trinity LLC's demurrer to Plaintiff Scott Johnson's Verified Complaint is CONTINUED to October 12, 2026, at 1:45 p.m. The Court also continues the CMC set for 8:30 a.m. on October 12, 2026, to 1:45 p.m. on October 12, 2026. "[T]rial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort." (<i>Dumas v. Los Angeles County Bd. of Supervisors</i> (2020) 45 Cal.App.5th 348, 355, fn. 3.) Defendant failed to properly meet and confer prior to filing the demurrer. In response to Defendant's letter, Plaintiff's counsel invited Defendant to meet and confer: "I am available in the early afternoon this Friday or next Monday through Wednesday to meet and confer. Please provide
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		the authority you intend to rely on ahead of time so that I have a chance to review it and so that a proper conference may take place..." (Sari Decl., ¶ 8, Ex. B.) Defendant did not engage in this effort, opting instead to rely upon a form letter as its meet and confer. The Court ORDERS the parties to meaningfully meet and confer in person or by telephone concerning the issues raised in the demurrer with an eye toward reducing the number of issues or eliminating the need for a demurrer. Defendant is to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the demurrer off calendar. Moving Defendant to give notice.
2	Madani v. 2900 & 2910 E. Miraloma Ave. LLC 2025-01482955 Demurrer to Cross Complaint	Defendant/cross-defendant 2900 & 2910 E. Miraloma Avenue LLC's (Miraloma) Demurrer to Defendant/cross-defendant/cross-complainant Jones Roofing, Inc. (Jones Roofing) Cross-complaint is OVERRULED as MOOT. Fifth cause of action for express indemnity "Express contractual indemnity involves the agreement between two parties that one will indemnify the other in certain circumstances specified in the contract of indemnity." (<i>Irm Corp. v. Carlson</i> (1986) 179 Cal.App.3d 94, 109 [citation omitted].) Miraloma demurs on the ground the cross-complaint fails to allege the existence of a contract that contains a contractual indemnity provision. In opposition, Jones Roofing states the fifth cause of action for express indemnity is against Moes 25-50 only and Miraloma has been identified as Moe 1. As such, Jones Roofing contends the demurrer should be considered moot because it is not at issue in the cross-complaint against Miraloma. Jones Roofing further contends counsel has met and conferred with counsel and agreed that express indemnity is not a cause of action against Miraloma. Given the above, the Court OVERRULES the demurrer as MOOT. The Court ORDERS Miraloma to file an answer within 10 days.

4	Worobey v. Pinkert 2026-01545485 Motion to Strike Complaint	Defendant Tony Pinkert's Motion to Strike Portions of First Amended Complaint is DENIED. A plaintiff may seek punitive damages only "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294(a).) "Malice" means "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code § 3294(c)(1).) "Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294(c)(2).) "Despicable conduct" is conduct that is "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (<i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210.) A claim for punitive damages is not viable where the complaint relies on "conclusory allegations" and "is devoid of any factual assertions supporting a conclusion [defendant] acted with oppression, fraud or malice." (<i>Smith v. Superior Court</i> (1992) 10 Cal.App.4th 1033, 1042.) Here, Plaintiffs allege claims for negligence, breach of implied warranty of habitability, and private nuisance against Defendant, their landlord, related to alleged water damage, mold, and other habitability issues regarding the subject residence. Plaintiff Ryan Worobey was the tenant and Plaintiff Cassidy Hennessy was his girlfriend, a frequent visitor at the property. Defendant contends Plaintiffs have failed to allege facts showing he acted with malice, despicably, or in conscious disregard of Plaintiffs' rights. Plaintiffs respond that their claims go beyond negligence and include allegations that Defendant wrongfully concealed known mold/water damage from prior tenancies which he failed to remedy or disclose. Plaintiffs cite case law holding that a landlord may be held liable for punitive damages if intentional misconduct relating to a known unsafe/dangerous condition is proven. (Opp., pp. 9-11; see <i>Stoiber v. Honeychuck</i> (1980) 101 Cal.App.3d 903, 920 [nuisance claim pled as intentional tort based on actual knowledge of unsafe property conditions may support punitive damages].) The motion is denied. Plaintiffs have sufficiently alleged that Defendant acted with conscious disregard of
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		Plaintiffs' health and safety sufficient to support a claim for punitive damages at the pleading stage.
5	All Inclusive Insurance Services, LLC v. EOS Organization, LLC 2023-01310746 Motion to Strike Answer	Plaintiffs All Inclusive Insurance Services, LLC and Isidro Miramontes' motion to strike the Answer of Defendant EOS Organization, LLC ("EOS"); and for terminating sanctions against EOS is CONTINUED to September 28, 2026, at 1:45 p.m. The proof of service shows Plaintiffs served the moving papers on EOS who is appearing in <i>pro per</i> via email. (ROA 369.) There is no proof that EOS consented to being served by electronic mail. Without express consent as required by Code of Civil Procedure section 1010.6, subdivision (c), service of the moving papers by electronic mail on EOS was insufficient. Plaintiffs are ORDERED to serve the moving papers and give notice of the continued hearing date on EOS pursuant to Code of Civil Procedure within 5 days of this ruling and file proof of service of the same within 10 days. Plaintiffs to give notice.
6	Barrera v. Mother's Market & Kitchen, Inc. 2025-01480339 Motion for Leave to File Cross Complaint	Defendant Mother's Market & Kitchen, Inc.'s unopposed Motion for Leave to File a Cross-Complaint is GRANTED. Defendant is ORDERED to file the attached Cross-Complaint within 5 days of this order. "A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action." (Code Civ. Proc., § 426.50.) There is no indication of bad faith in filing the proposed Cross-Complaint. Defendant discovered the alleged cause of Plaintiff's injuries was a product of Simply Layered, Inc. after discovery was conducted. (Rystad Decl., ¶¶ 4-9.) Additionally, the Cross-Complaint arises out of the same occurrences as the Complaint, thus, it would serve judicial economy to allow the Cross-Complaint to be filed. Thus, Defendant's Motion is GRANTED
7	Turner v. Gordy	Plaintiff/Cross-Defendant Renita R. Turner's Motion to Set Aside is DENIED.

2024-01404350 Motion to Set Aside/Vacate Default OSC Re Monetary Sanctions CMC	Plaintiff/Cross-Defendant Renita R Turner ("Plaintiff") moves pursuant to Code of Civil Procedure section 473(b) to set aside the default entered against her on the first amended cross-complaint. Plaintiff seeks discretionary relief under section 473(b). Discretionary relief under section 473, subdivision (b) is available to "relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (<i>Austin v. Los Angeles Unified School Dist.</i> (2016) 244 Cal.App.4th 918, 929.) A motion for relief under section 473(b) "shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted" (Code Civ. Proc., § 473, subd. (b).) However, this requirement is not jurisdictional; substantial compliance may suffice. (<i>Carmel, Ltd. v. Tavoussi</i> (2009) 175 Cal.App.4th 393, 403 [finding substantial compliance where counsel offered proposed answer at motion hearing rather than serving it with moving papers].) A motion for discretionary relief must be made "within a reasonable time but in no instance exceeding six months after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).) The motion is timely. The court entered Plaintiff's default on 11/10/25. (ROA 42.) Plaintiff served and filed the instant motion 5/5/26, within the six month deadline. (ROA 50.) In the motion, Plaintiff contends that after the court sustained the demurrer to the cross-complaint with leave to amend, her attorney, Bahram Madaen, never received the amended cross-complaint; Mr. Madaen was surprised when he received the request for default; after inquiry, Mr. Madaen received a copy of the amended cross-complaint and saw that it had the same defects as before. (Motion at p. 3:22-26.) Plaintiff also states in the motion that Mr. Madaen believed that the defendant abandoned his claims for a cross-complaint since he did not see the actual documents within the time allowed by the court. (Motion at p. 7:2-5.) Mr. Madaen does not attest to all these facts in his attached declaration. Mr. Madaen states he received a
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		copy of the amended cross-complaint after Defendant filed the request for entry of default, reviewed it and noted what appeared to be legal insufficiencies. (Madaen Decl., ¶¶ 3, 4.) Mr. Madaen does not however state that he did not receive the amended complaint before Plaintiff's default was entered, he was surprised by the default, or that he believed Defendant abandoned his claims for a cross-complaint. These missing statements are especially critical since the proof of service attached to the amended cross-complaint indicates Mr. Madaen was served by email on 9/8/25. (ROA 38.) Thus, Plaintiff failed to establish mistake, inadvertence, surprise or excusable neglect. Plaintiff also failed to file a proposed responsive pleading. The motion is denied.
9	Azami v. LAD Mission Viejo – JLR, Inc. 2024-01374785 Motion for Sanctions	Plaintiff Nahid Azami's Motion for Sanctions is DENIED. Sanctions pursuant to Code of Civil Procedure section 128.7 are permissive and the Court is given discretion to evaluate the circumstances to determine if sanctions are warranted. (Code Civ. Proc., § 128.7(c).) After considering the relevant circumstances, the Court finds Defendant acted with due diligence by attempting to informally resolve the dispute by requesting a stipulation to amend its answer to remove the bankruptcy bar affirmative defense. Plaintiff instead refused to agree to the stipulation and instead brought this Motion. Further, Defendant has now sought leave to amend its answer as required by the Code. The hearing is set for October 19, 2026, after this hearing. Accordingly, the Court determines sanctions are not warranted.